

DRAFT
DISCIPLINARY CODE FOR MEMBERS

1. INTRODUCTION

ARRC is an identifiable political organization which needs laws to protect and retain its nature and character. It uses laws to preserve itself and to maintain a peaceful coexistence of its members. The nature of human kind dictates that laws should be supplemented by disciplinary measures that are applied in case the laws are contravened. In the context of ARRC, we have organized laws in this document called Disciplinary Code for members, which must be known and understood. Disciplinary Code is rules or norms or ethics or regulations of ARRC in which members involved have agreed to abide by, in order to preserve and maintain its nature and character.

2. COMPOSITION OF THE PARTICIPANT(S) AND OR VOLUNTEER COURT

Article 13 of ARRC Draft constitution states that there shall be a members' Court which Investigate and hear charges of misconduct.

ARTICLE 14 of the draft constitution, provides:

- The members court shall be composed as follows:
- The Chairperson of the court
- The Prosecutor
- Representative of the offender
- Secretary of the court

3. PURPOSE AND FUNCTION OF THE COURT

The Court shall investigate and hear Charges Pertaining exclusively to the affairs of ARRC and take disciplinary or corrective measures against offenders

4. IMPLEMENTATION OF DISCIPLINARY MEASURES

- If a member is a minor, no disciplinary or court measures shall be taken against him or her before his or her parents or guardian has been informed in writing of his or her alleged misconduct and has been given proper opportunity to make a written statement and if he or she wishes to appear before the court in person.

5. INSTANCES OF MISCONDUCT

A member of ARRC shall be guilty of misconduct if he or she:

- 5.1. Refuses or fails to comply with lawful instruction or request of any office bearer or leader or acts contrary to such instruction or request.

- 5.2. Intentionally or negligently contravenes or subverts, attempt to contravene or subvert a code or regulation, rule or instruction of ARRC.
- 5.3. Steals, unlawfully appropriates, uses or misuses, destroys, damages, or alienates property of ARRC or of a member, uses or handles such property in a way that may be prejudicial to ARRC, participant and or volunteer while such member or participant and or volunteer is within the gathering of ARRC.
- 5.4. Introduces intoxication in ARRC or is found to be in possession of dependence producing drug without medical prescription, uses it or is under influence of such a drug.
- 5.5. Affixes, distributes or displays ARRC banner, placard, circular, letter, pamphlet in the name of ARRC without the realization of ARRC .
- 5.6. Behaves in such a violent, disorderly or unbecoming way on in the immediate gathering of ARRC.
- 5.7. Convenes an assembly of ARRC participant, members and or volunteers without obtaining the prior consent of relevant structures or any other senior authority or attend a gathering prohibited by ARRC.
- 5.8. Knowingly makes a false erroneous statement to any participant and or volunteer of ARRC or intentionally provides material false information to any outsider from ARRC about ARRC.
- 5.9. Speaks or addresses the public in an offensive manner or insults the public.
- 5.10. Behaves in any manner that may lead to consequences described below, if such consequences were could be reasonably have been foreseen at the time when such Behaviour occurred, behaviour as a result of which:
 - The name of ARRC may be prejudiced
 - The keeping of order, discipline and security of ARRC may be prejudiced or imperiled
 - The process of teaching, speaking, administration of any general activities are or may be prejudiced or imperilled.
 - Collects money or offers asserts or property of ARRC without permission of ARRC.

6. PROCEDURE IN THE CASE OF A COMPLAINT OF MISCONDUCT

6.1. Notification of Misconduct:

In case where the offender is at a Branch, Provincial or National Level, etc.

6.1.1. Notification of misconduct shall be given to the Secretary of the Branch in which the member belongs

6.1.2. A person shall not be formally charged with misconduct until a written, signed statement containing an accusation, complaint or allegation made against him or her has been submitted to the National Secretary Provided that nothing shall prevent the said from laying complaints against the Offender (This procedure applies to all members of ARRC in all cases.)

6.2. COMMITTEE CHARGED WITH PRELIMINARY INVESTIGATION

6.2.1. The SG may appoint a Committee consisting of two (2) or three (3) Cdes within ARRC to conduct a Preliminary investigation into an accusation or allegation brought to his or her notice into the behaviour of a member that might constitute misconduct and submit a written report or charge sheet to him or her.

6.2.2. The Committee Charged with preliminary investigation may consult or find Information from any person including the participant and or volunteer against whom the accusation, complaint or allegation has been leveled or made, provided the SG may conduct the Investigation him or herself.

6.3. CHARGE OF SERIOUS MISCONDUCT: REFERRAL TO THE MEMBER (S) COURT

- If the SG is of the opinion that prima-facie there is reasonable grounds for a charge of misconduct and the misconduct is of a serious nature, she or she shall draw up a written charge and refer the charge to the MEMBER (S) court.

6.3.1. Suspension

6.3.1.1. In the event of a charge of an alleged misconduct, of the SG , may at his or her discretion temporarily suspend the member (that is prohibit member from) :

- Participating in the activities of ARRC as determined by the constitution.
- Exercising the right or privilege resulting from his or her being a member of ARRC
- The temporally suspension by the SG shall remain in force for a period determined by him or her, until the member (s) court processes have been completed in terms of this code , provided the SG shall have the charge concerned investigated at the earliest reasonable opportunity.
- The suspended member may forward written presentation to the SG within seven (7) days of a written notice of his or her suspension advancing reasons why he or she should not be suspended
- The SG may at his or her discretion revoke the suspension at any time provided that, notwithstanding such revocation, further step may not be taken to prosecute a charge of misconduct.
- The SG may at his or her discretion re-invoke the suspension.

7. GENERAL PROCEDURE AT THE HEARING OF A CHARGE OF MISCONDUCT: A DISCIPLINARY CASE

7.1. Notice to the Accused Member :

- For the purposes of hearing by the members of the member (s) court , the Court Secretary in consultation with the court members prior to the date of the hearing , shall give the accused at least seven days written notice of his or her appearance before the court with a statement informing him or her of :7.1.1. The charge against him or her and providing with adequate particulars of his or her

Alleged allegation or misconduct and his or her right to:

- Attend the hearing when evidence is led and arguments are adduced
- Answer to the charge in writing at least four(4) days before the hearing
- Be assisted if he or she is a minor , by his or her parent or guardian or at the discretion of the court by any other person appointed by such a parent or guardian and
- Be represented by a member , office bearer of ARRC appointed by the court

7.2. Rights of the Accused member and Powers of the Prosecutor

- The accused member has the Right to :

7.2.1. Examine any written documentation, or accessible copies thereof which relates to the hearing and, subject to such condition as may be laid down by the chairperson of the Court

7.2.2. Give evidence him or herself

7.2.3. Examine or have examined the witness (s) testifying against him or her

7.2.4. Re-examine or have re-examined, his or he own witness(s)

7.2.5. Call witness(s) or have them called by the person assisting him or her

7.2.6. Argue his or her own case or have it argued after all evidence has been led

7.2.7. Lead evidence in mitigation of any disciplinary measure that may be imposed on him or her

8. THE CHAIRPERSON OF THE COURT OR PROSECUTOR MAY:

8.1. Call witness and re-examine the witness giving evidence against the accused Member

8.2. Examine the accused person, if he or she gave evidence as well as any other person who testifies on behalf of the accused member

8.3. Argue the disciplinary case after all evidence has been lead, but before the accused has been given opportunity to argue his or her own case or have it argued by the person assisting

8.2. QUORUM OF THE HEARING

8.2.1. In case where the offender not an office bearer, three (3) members of the court shall Constitute a quorum

8.2.2. In case where the offender is an office bearer, four (4) members of the court shall Constitute a quorum

8.2.3. Subject to the provision of the Constitution of ARRC , Article 14. of the draft constitution Provided that the member(s) court shall not be a permanent body and shall be constituted only when the need arises (case of misconduct)

8.2.4. The presiding officer shall determine the procedure in line with the constitution

8.2.5. If prior to a finding being made regarding the charge against the accused, the Chairperson of the court is of the opinion that the charge concerned should be heard by another body , he or she should stop the hearing and refer the matter to the SG.

8.2.6. The SG in consultation with relevant structures (NEC) , should decide if the hearing should proceed or that the matter be referred to another body

9. APPOINTMENT OF AN AD HOC MEMBER OF THE COURT

9.1. In particular complex disciplinary cases where the court requires special expertise, the Presiding chairperson may appoint an ad hoc member, but in an advisory capacity only.

9.2. Such a member may be a member in any structure of ARRC

9.3. The decision of the court shall be determined by majority vote of members present

9.4. If at some stage during the hearing of a disciplinary case, one or more members of the Court are no longer able to participate in the proceedings, or are absent for any reason, the hearing shall continue, provided that the remaining members constitute a quorum

9.5. In all other cases the hearing shall be held De Novo

9.6. The presiding Chairperson shall have a casting vote in addition to his or her ordinary Vote

9.7. No member who has him or herself laid a complaint shall be involved in the Proceedings of the court for hearing of the charge arising there from
9.8. If a member charged with misconduct fails to attend or obstructs any proceedings of the court , shall not be invalidated thereof

9.9. If a member charged with misconduct interferes with or obstructs any proceedings of a court or refuses to carry out an instruction of the presiding chairperson of the court , he or she may be ordered by the chairperson to withdraw from the proceedings which may then continue in his or her absence

9.10. If a member charged with misconduct admits guilt in respect of the charge, the court shall decide whether or not evidence concerning the charge should be adduced

9.11. All documentation pertaining to disciplinary matters shall be kept in safe custody by the SG

9.12. Such documentation should be kept in a safe custody for a period of at least three (3) years after the announcement of court finding or ruling or a period of at least of at least three (3) years after the findings of the Disciplinary Appeals Court in case the appeal lodged by the applicant against the disciplinary findings or ruling

10. IMPLEMENTATION OF THE DISCIPLINARY MEASURES

- If a member is a minor , no disciplinary measure will be taken against him or her before his or her parent or guardian has been informed in writing of his or her misconduct as alleged and has been given proper opportunity to make a written statement if he or she so wishes to appear before the court.

10.1. DISCIPLINARY MEASURES

If the Court finds a participant and or volunteer guilty of misconduct, it may impose one (1) of the following measures:

10.1.1. A written reprimand or warning

10.1.2. Deprivation of the right or privilege resulting from his or her membership

10.1.3. Payment of compensation or reparation of damage caused by his or her

Misconduct

10.1.4. Denial of the right or privilege to speak, teach, or participate in any of ARRC Activities

10.1.5. Confirmation of a temporary suspension for a specified period or further period (but a reasonable suspension should not exceed or go beyond three (3) months)

10.2. Demotion or Repositioning

10.2.1. The member can either be demoted or repositioned

10.2.2. Any disciplinary measure which the court deems suitable in particular circumstances

10.2.3. If a member is temporarily or permanently denied deprived in terms of this code a right or a privilege which he or she enjoys as a member if he or she is temporarily or permanently denied those privileges or rights resulting from his or her membership in ARRC , such member shall not have any claim for payment , reduction , remission of monies contributed or donated to ARRC

11. THE DISCIPLINARY APPEALS COURT

Article 15 of the Draft Constitution provides:

12.3.1. There shall be an Appeals Court if a member disputes the Judgement of the member(s) Court

12.3.2. The appeal shall be lodged within fourteen (14) calendar days of the judgement of the court

12.3.3. The NEC shall on the recommendation of the SG constitute an appeals court

12.3.4. The Appeals Court shall not be more than three (3) persons who were not present in during the proceedings of trial and judgment

12.3.5. The decision of the Appeals Court shall be final

12. PROCEDURE FOR APPEAL

12.1.1. A member who has been found guilty of misconduct by the disciplinary Court, may within seven (7) days being informed in writing of the finding of the Disciplinary court concerned, appeal to the SG by lodging a written notice of appeal, provided that a member who has been found guilty of misconduct having pleaded guilty to the charge against him or her shall have no right to appeal against such a finding

12.1.2. The appeal shall furnish detailed grounds for his or her appeal in the notice of appeal

12.1.3. On receipt of the appeal notice, copy of such notice shall be forwarded to the Chairperson of the court who presided over the court that heard the charge, whereupon the court where necessary with the assistance of the court secretary , may within reasonable period draw up a reply to the grounds for the appeal and submit it to the Chairperson of the Disciplinary Appeals Court

12.1.4. An appeal shall be held on the grounds of the record of hearing concerned, together with other document(s) and exhibit before the disciplinary court concerned in the course of hearing , excerpt where the appeal is based on material irregularity that is alleged to have occurred in the course of the proceedings but does not appear as such in the record

12.1.5. For the purpose of an appeal, the appellant, or the person assisting him or her or any other person allowed by the Disciplinary Appeals Court , or the disciplinary court concerned make written , or with the permission of the Disciplinary Appeals Court , make verbal presentation to the disciplinary court

12.1.6. After considering an appeal, the Disciplinary Appeals Court may uphold it either wholly or in part and set aside or amend the decision of the disciplinary court concerned, or may disallow the appeal and confirm the decision wholly or in part , or before reaching a final decision on the appeal , refer any question pertaining or the hearing back to the court concerned and order that the report be submitted

12.1.7. The disciplinary measure imposed by the disciplinary court shall not however, be increased

12.1.8. After disposing an appeal, the Disciplinary Appeals Court shall submit a written report to the SG , which will then forward it to the ARRC structures for their information.

13. CONCLUSION

Whereas ARRC recognizes the rights and privileges arising from being members it is also expected that members must fulfil their obligation in accordance to its Code of conduct. To this end, ARRC shall not entertain any idea serving to promote anarchy mentality by disobeying the rules, processes and procedures or acting contrary to what it considers proper conduct for the advancement of good image. ARRC believes that people have chosen to be involved with it and therefore shall conduct themselves accordingly. It must also be clear that the issue of misconduct whatever nature it is (minor or major) will not be discussed in substructure, divisional or general meetings. The principle of Equality before ARRC Code of Conduct shall not be betrayed.

ADOPTION

DATE: _____

Mover

Secunder

Signed

President

Chairperson

Secretary
